

**SUBSTITUTE FOR
SENATE BILL NO. 784**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1271.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 1271. (1) The department shall establish and operate a**
2 **program to provide free school lunch and breakfast to public school**
3 **and nonpublic school pupils in grades pre-K to 12 and to pupils who**
4 **are not more than 26 years of age and are enrolled in special**
5 **education programs, including pupils who attend the Michigan School**
6 **for the Deaf.**

7 **(2) A participating entity shall apply to the department for**
8 **enrollment in the free school lunch and breakfast program**
9 **established under subsection (1) in a form and manner determined by**



1 the department. The department shall approve a participating
2 entity's application if the participating entity does all of the
3 following:

4 (a) Participates in the National School Lunch Program and
5 School Breakfast Program.

6 (b) Provides reimbursable breakfasts and reimbursable lunches
7 at no cost to all pupils for any school breakfast program or school
8 lunch program operated by the participating entity.

9 (c) Submits information regarding the number of reimbursable
10 breakfasts and reimbursable lunches served in a manner determined
11 by the department.

12 (d) Maximizes federal reimbursement for reimbursable
13 breakfasts and reimbursable lunches by operating under the CEP if
14 the participating entity has an identified student percentage
15 greater than or equal to the minimum requirement to be eligible to
16 participate in the CEP. For purposes of this subdivision, all
17 eligible participating entities must elect CEP on behalf of a
18 single school, a group or groups of schools, or all schools in the
19 participating entity, as applicable, in a manner that maximizes
20 federal reimbursement as determined by the department.

21 (e) Meets all applicable federal and state standards in its
22 school breakfast and lunch programs, as determined by the
23 department.

24 (f) Takes all efforts to maximize and implement policies that
25 encourage parents or legal guardians to fill out relevant family
26 income information, in a manner prescribed by the department, for
27 the purposes of determining student eligibility for federal free or
28 reduced cost meal reimbursement rates, CEP eligibility
29 determinations, and other educational benefits.



1 (g) Forgives all school meal debt, as determined by the
2 department.

3 (3) Subject to federal law and regulations, participating
4 entities shall offer meals that meet a pupil's disability or
5 medical need that restricts the pupil's diet if that disability or
6 medical need is documented by a medical statement that conforms to
7 current federal regulations. Accommodations must be made on a case-
8 by-case basis. Participating entities are encouraged to offer meals
9 that meet a pupil's religious or dietary preferences, including,
10 but not limited to, vegetarian, kosher, and halal meals, if those
11 religious or dietary preferences meet the federal meal pattern
12 requirements.

13 (4) As used in this section:

14 (a) "CEP" means the Community Eligibility Provision under the
15 Richard B. Russell National School Lunch Act, 42 USC 1751 to 1769j.

16 (b) "Participating entity" means a public school, a nonpublic
17 school, or the Michigan School for the Deaf.

18 Enacting section 1. This amendatory act does not take effect
19 unless Senate Bill No. 785 of the 103rd Legislature is enacted into
20 law.

